IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal under and in terms of Section 331 of the Code of Criminal Procedure Act No.15 of 1979.

CA Case No: CA-HCC 284/19

HC of Colombo Case NO : HC 6178/12

The Democratic Socialist Republic of Sri Lanka.

COMPLAINANT

Vs

1. Okandapola Arachchige Dharshana
2. Hewanalagamage Asitha Kalum
3. Thalathugedara Jayantha Herath
4. Larifdeen Mohammed Imran alias Ukka

ACCUSED

And Now in Between

1. Okandapola Arachchige Dharshana
2. Hewanalagamage Asitha Kalum

3. Thalathugedara Jayantha Herath
4. Larifdeen Mohammed Imran alias Ukka

ACCUSED -APPELLANTS

Vs

The Attorney General

Attorney General's Department

Colombo 12.

COMPLAINAT- RESPONDENT

Before: **B. Sasi Mahendran, J.**
Amal Ranaraja, J

Counsel : Indica Mallawaratchy for the Accused- Appellant
Azard Navavi ASG, for the Respondent

Written Submissions: 29.09.2020 (by the Appellants)
10.02.2021 (by the Respondent)

Argued On: 20.01.2026 and 21.01.2026

Judgment On: 23.03.2026

JUDGEMENT

B. Sasi Mahendran, J.

The 1st, 2nd,4th, and 5th Accused Appellants (herein after referred to as the 1st, 2nd, 4th, and 5th Appellants), along with the 3rd Accused, Nijabdeen Mohemed Rimsan, were indicted before the High Court of Galle on the following counts,

1. On or about 2.12.2008, committed an offence which is punishable under Section 140 of the Penal Code by being members of an unlawful assembly with the common purpose of causing injury to Stephen Jeyawandran alias Sinnappu.
2. Causing the death of Stephen Jeyachandran alias Sinnappu, being members of an unlawful assembly, and committed the offence of murder punishable under Section 296 read with Section 146 of the Penal Code.
3. Causing the death of the said Stephen Jeyachandran alias Sinnappu which is punishable under Section 296 read with the section 32 of the Penal Code.

At the trial, the prosecution presented evidence through five witnesses and marking productions P1-P9 and thereafter closed its case. All the Accused, in their defence, made dock statements.

Upon conclusion of the trial, the Learned Judge of the High Court delivered judgment on 7th May 2019. The 1st, 2nd, 4th, and 5th appellants were found guilty on the third count of the indictment and sentenced to death, and were acquitted of the first and second counts. The 3rd accused was acquitted and discharged from all three charges.

Being dissatisfied with both the conviction and the sentence imposed by the Learned High Court Judge, the Appellants preferred an appeal before this Court, articulating the following grounds in support of their challenge.

1. Evidence of the sole eyewitness namely sandamali (PW/3), is fraught with serious infirmities which renders the conviction wholly unsafe.

2. Assessment of the testimonial trustworthiness of the sole eyewitness by the trial court is deficient and flawed.
3. Trial court has flawed on the principles relating to Sec.27 recoveries consequently causing serious prejudice to the accused appellants.

The facts and circumstances of this case are as follows,

PW 3, R.M.P.Rathnawali, the sole eyewitness of the case, who is a resident in the same area, Status Road, where the deceased and the accused were residing. She states that she had known the appellants and the deceased for over 15 years and that the deceased was a friend of her brother. On 02.12.2008, at around 11.00 p.m., the deceased visited the residence of the witness and requested a sum of Rs. 200/-, but shortly thereafter, upon the arrival of his wife, he departed. Later that night, PW 3 stated that she went to a boutique to obtain a reload, where she again encountered the deceased, who was standing across a bridge and requested money once more. In order to hand over the money, the witness accompanied the deceased back towards her residence.

On their way she saw the 4th appellant hit the deceased's head from behind with a hockey stick. After the blow on his head, the deceased had fallen on the ground screaming අම්මෝ, and the 1st appellant came and attacked the deceased on his neck with a Manna Knife. After **the** first appellants's attack, the witness stated that the 2nd and 5th , appellants, along with the 3rd, Accused, arrived carrying two poles and a Manna knife. She testified that the 2nd and 5th Appellants assaulted the deceased with the poles. The witness observed the incident under the presence of light, and PW 7, who subsequently visited the scene, confirmed that there was indeed illumination at the location.

The witness stated that when she attempted to intervene, the 4th Appellant shouted at her to stop. PW 1 further claimed that after she rushed to the Grandpass Police to report the incident. In her testimony, PW3 added that the police did not record any statement on that day; instead, her statement was taken after 14 days, as she had been hiding due to the Appellants searching for her. She further stated that the accused attacked and caused damage to her house.

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> ප්‍ර : මම කිව්වොත් තමන් කට උත්තරය දීලා තිබෙන්නේ දවස් 14 කට පස්සෙ කියලා තමන් පිළි ගන්නවාද ?
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> උ : ඒකත් වෙන්න පුළුවන්. ඇයි කියන්නේ මේ ගොල්ලො මාවත් හොයා ගෙන හිටියා. මමත් හැංගිලා තමයි හිටියේ. ඊට පස්සෙ පොලිසිය දැන්වීමක් දීලා තමයි මම ආවේ. කට උත්තරයක් කියලා කියන්නේ කවුද මැරුවේ දන්නවා ද කියන එක විතරයි ඇහුවේ. මම කිව්වා ඔව් මම දන්නවා කියලා. ඊට පහුවෙනිදා මම කිව්වේ.

During the cross-examination, the counsel for the appellants suggested that she had been engaged in an affair with the deceased during the relevant period and therefore she is fabricating the story. The witness categorically denied this suggestion. The defence suggested that the witness had not gone to the police station to make a complaint. In response, the witness stated that she did, in fact, go to the police station, and that was the reason the police subsequently came. This assertion was disputed by PW 6, who stated that the witness had not come police to make a complaint.

She categorically stated that she had seen the 4th appellant, striking the deceased on the head with a hockey stick, followed immediately by the 1st appellant, who stabbed the deceased. It was suggested by the counsel for the appellants that the witness was fabricating a story, as it was not possible for neighbors not to have heard of the attack, as it was a highly residential area. However, the witness categorically denies such allegations, stating that there were no houses closer to the place of the incident.

It is pertinent to note that an omission was marked by the counsel for the 4th Appellant stating that the witness in her statement had not mentioned the hockey stick. I note that instead the witness has referred to it as a "polla" and the learned trial Judge considered this point and held that it does not affect her credibility.

PW 6, IP Vajira S K Dhanapala, stated that on 03.12.2008, the deceased's mother arrived at the police station and informed them that her son was stabbed to death. The witness stated that, following the arrest of the appellant, from their statements he recovered a Manna knife from the 1st Appellant, a knife from the 2nd Appellant, and

another Manna knife from the 3rd accused. The 1st and 2nd Appellants did not dispute these recoveries. However, the 3rd accused denied that a knife was recovered from his possession, asserting instead that it was introduced by the police.

PW 11, Dr. A. Dayapala, JMO, testified that he conducted the post-mortem examination on 03.12.2008. He testified that the deceased sustained a total of fifteen injuries, comprising thirteen cut wounds and two stab wounds. PW 11 further explained that injury No. 3 was fatal, which was a cut in the head, as the cut penetrated deep into the brain and could have easily caused death. He opined that it constituted a very great antecedent probability of death. He also noted the possibility that the injuries may have been inflicted by weapons marked as P2 (Manna Knife), P8 (knife), and P5 (knife). Additionally, he testified that it was not possible for a single individual to cause such fatal injuries and that it was highly likely they were inflicted by more than one person.

Furthermore, the Judicial Medical Officer testified that, of the two stab injuries, the second was located in the middle of the chest and had penetrated deeply, reaching the principal blood vessel of the left lung. He noted that the absence of significant external bleeding was unusual. The JMO further opined that this stab injury was inflicted very close to, or subsequent to, the death caused by head injury (Injury No. 03).

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ප්‍ර : ඒ වගේම ඇනුම් තුවාල කොපමණ ප්‍රමාණයක් ඔබතුමා නිරීක්ෂණය කළාද?

උ : ඇනුම් තුවාල දෙකක් නිරීක්ෂණය කළා ස්වාමිණි.

ප්‍ර : ඒ කුමන ස්ථාන වලදීද?

උ : එක ඇනුම් තුවාලයක් සෙන්ටිමීටර් තුනක් පමණ දිගින් යුතු ඇනුම් තුවාලයක්. පපුවේ දකුණු බාහුවට කිට්ටු වෙන්න. එහි තමයි දකින්නට ලැබුණේ එක පැත්තක් උල් ආකාරයෙන් සහ අනෙක් පැත්ත මොට ආකාරයට. එම ඇනුම් තුවාලය පපුව ඇතුලට කිදා බැහැලා තිබුණේ නැහැ ස්වාමිණි. මස් ගොබයට පමණක් සීමා වෙලා තිබුණා. තව ඇනුම් තුවාලයක් දකින්නට ලැබුණා සෙන්ටිමීටර් දෙකක පමණ ඇනුම් තුවාලයක්. තිරස්ව පිහිටි පපුවේ මැද කොටසේ දක්නට ලැබුණේ. තනපුඩු තිබෙන රේඛාවේ. එහි එය ඉතා ගැඹුරට ගොස් වම් පෙනහල්ලේ ප්‍රධාන ලේ නහර ප්‍රදේශය දක්වා ගමන් කර තිබුණා.

Upon conclusion of the prosecution's case, all the appellants gave dock statements and denied the allegation of committing the murder of the deceased. None of the appellants denied the recovery of the production, but the third accused denied this allegation.

The Learned High Court Judge observed the opinion formed by the JMO injuries sustained by the deceased were inflicted by more than one individual which corroborates the testimony of PW 03 regarding the manner in which the injuries were inflicted by the Appellants. I note that the Learned High Court Judge has correctly evaluated the evidence of PW 3, which was corroborated by the doctor's testimony, PW 11.

The principal grievance advanced by the defence was that the evidence of PW3 should be rejected on the ground that her statement to the police was made after a delay of 14 days. In addressing this contention, it is necessary to consider whether the testimony of a witness who comes forward belatedly can be accepted. Our courts have held that while delay may raise concerns regarding credibility, it does not automatically render the testimony inadmissible. The Court must evaluate whether the delay has been satisfactorily explained and whether the explanation is justifiable with the circumstances of the case.

At this juncture, reference must be made to judicial decisions that have examined the admissibility and reliability of delayed statements.

In ***Sumanasena Vs Attorney General*** [1999] 3 SLR 137 at page 140, His Lordship Justice Jayasuriya held as follows.

> *"just because the witness is a belated witness the Court ought not to reject his testimony on that score alone and that a Court must inquire into the reason for the delay and if the reason for the delay is plausible and justifiable the Court could act on the evidence of a belated witness."*

In ***Ajith Samarakoon Vs the Republic*** [2004] 2 SLR 209 at page 220, His Lordship Justice Jayasuriya held as follows.

> *"Just because the statement of a witness is belated the Court is not entitled to reject such testimony. In applying the Test of Spontaneity the Test of Contemporaneity and the Test of Promptness the Court ought to scrupulously proceed to examine the reasons for the delay. If the reasons for the delay adduced by the witness are justifiable and probable the trial Judge is entitled to act on the evidence of a witness who had made a belated statement."*

In the case of ***Dhannasiri vs. The Republic of Sri Lanka*** 2012 (1) SLR 268 Tilakawardane, J held *inter alia*;

> *"Two critical tests before considering belated evidence as reliable " evidence are: firstly reasons for delay and secondly, whether those reasons are justifiable."*

Further in the case of ***Dharmasiri v Republic of Sri Lanka*** 2010 (2) SLR 241, Sisira de Abrew, J held *inter alia*;

> *"Because the witness is a belated witness, Court ought not to reject his testimony on that score alone. Court must inquire into the reason for the delay and if the reason for the delay is plausible and justifiable, the Court could act on the evidence of the belated witness."*

Further, in the case of ***Udagam Vs. Attorney General*** 2000 (2) SLR 103 relied by the learned Counsel for the Appellant it was held that;

> *"Evidence is infirm, unsafe and unreliable to act upon considering the following;*
>
> *(i) the belated statement made to the Police with delay not explained with acceptable reasons."*

According to the above judicial literature, when assessing the evidentiary value of the belated statement made by PW3 to the police, this Court must first consider the reasons for the delay, and secondly, whether such reasons are legally and factually justifiable. The testimony of the witness demonstrates that the delay in PW3' s statement was occasioned by fear for her personal safety. Learned Counsel for the Appellant argued that PW3 had made her statement to the police only after a lapse of 14 days from the incident. While the delay is undeniable, the explanation provided that PW3 refrained from immediately implicating the Appellant due to apprehension for her own security appears credible.

It is pertinent to refer to the evidence of PW 3.

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> ප්‍ර : මම කිව්වොත් තමන් කට උත්තරය දීලා තිබෙන්නේ දවස් 14 කට පස්සෙ කියලා තමන් පිළි ගන්නවාද ?
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> උ : ඒකත් වෙන්න පුළුවන්. ඇයි කියන්නේ මේ ගොල්ලො මාවත් හොයා ගෙන හිටියා. මමත් හැංගිලා තමයි හිටියේ. ඊට පස්සෙ පොලිසිය දැන්වීමක් දීලා තමයි මම ආවේ. කට උත්තරයක් කියලා කියන්නේ කවුද මැරුවේ දන්නවා ද කියන එක විතරයි ඇහුවේ. මම කිව්වා ඔව් මම දන්නවා කියලා. ඊට පහුවෙනිදා මම කිව්වේ.

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> ප්‍ර : ඇයි තමන් හැංගිලා හිටියේ?
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> උ : මේ කට්ටිය මාව හොයා ගෙන අපේ ගෙදරට ඇවිල්ලා තට්ටු කරලා අපේ උඩ තට්ටුවට යන්න තිබෙන්නේ ඉණිමගක්. ඒ ඉණිමග විසි කරලා, ජනේලෙ කඩලා මේ ගොල්ලො ගිහිල්ලා තියෙනවා. ඒ වෙලාවේ පොලිසියට ගිහිල්ලා

The Learned High Court Judge has correctly considered the evidence and recorded the following findings

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> පොලිසිය විසින් සටහන් කර ගත් ප්‍රකාශය දින දාහතරක් ප්‍රමාද වී සිදු කිරීම පිළිබඳව පැ.සා. 3 විසින් පැහැදිලි හේතු දැක්වීමක් කර ඇත. තමන්ගේ නිවසේ උඩ තට්ටුවට යන්න තිබෙන්නේ ඉනිමඟක් බවත්, එම ඉනිමග විසි කරලා ජනෙල් කඩලා තිබුණු බවට දැන ගත් බවත්, උක්කු

> මහත්තයා දර්ශන වැනි විත්තිකරුවන් එසේ තමාගේ නිවසට හානි කර තිබූ බවට දැන ගත් බවත්, පැ.සා.3 පවසයි. විත්තිකරුවන් තමාවද සොය සොයා සිටිය නිසා තමා හැංගිලා සිටි බවත්, පොලිසියේ දැන්වීමක් අනුව පැමිණ කට උත්තරයක් ලබා දුන් බවටත් පැ .සා. 3 හේතු දැක්වීමක් කර තිබේ. මෙම හේතු දැක්වීම අධිකරණයට පිළිගත හැකිය.

In circumstances where a witness reasonably fears retaliation or harm, the Court must weigh such fear as a mitigating factor in evaluating the credibility of delayed testimony. Accordingly, although the statement was made belatedly, the delay is satisfactorily explained and does not diminish its evidentiary value.

The next issue for consideration is whether PW 3 in fact witnessed the incident. According to the testimony of the witness, the fourth Appellant was the first to strike the deceased, after which the first appellant attacked him with a Manna knife. Thereafter, the second and fifth appellants assaulted the deceased with a pole.

PW 11, the Judicial Medical Officer, testified that the injuries sustained by the deceased were inflicted by more than one assailant, and that the weapons recovered from the 1st and 2nd Appellants, together with the 3rd accused, were consistent with those injuries. He further opined that injury No. 03 was inflicted very close to, or immediately after, the fatal head injury (Injury No 3).

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> තනි පුද්ගලයෙකුට වඩා වැඩි ගණනක් සම්බන්ධව වී ඇති බව මට කියන්න පුළුවන් ස්වාමිණි. මොකද කැපුම් තුවාල සහ ඇනුම් තුවාල පැහැදිලි වශයෙන්ම දකින්නට ලැබෙනවා. එසේම කැපුම් තුවාල සිදු කරනු ලබන ආයුධ බර සහ දිග බව පෙනී යනවා. ඇනුම් තුවාල සිදු කරන ලද ආයුධය කෙටි උල් ආකාරයක් දක්නට ලැබෙනවා. එකම පුද්ගලයෙක් ආයුධ දෙකකින් පහර දෙයි යැයි හිතන්න අමාරුයි ස්වාමිණි. ඒ නිසා අඩු වශයෙන් දෙන්නෙක් හෝ ඊට වැඩි ගණනක් සම්බන්ධ බව දළ වශයෙන් කිව හැකියි.

Upon analyzing the evidence of PW 11, it is apparent that his testimony corroborates that of PW 3 stated that the fourth accused struck the deceased first, causing him to fall to the ground. Thereafter, the first accused attacked the deceased with a Manna knife, while both the second and fifth accused assaulted him with a pole.

The Learned High Court Judge has accepted the evidence of PW 3 reconcile her evidence with the medical evidence. It is pertinent to reproduce that portion of the judgment.

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පැ.සා.3 පවසන්නේ පළවන විත්තිකරු පැමිණි මන්නයකින් මරණකරුගේ බෙල්ලට ගැසූ බවයි. Y වශයෙන් ඇති පශ්චාත් මරණ පරීක්ෂණ වාරතාවේ විස්තර කර ඇති තුවාල අනුව දකුණු කන අසල බරපතල කැපුම් තුවාල පිළිබඳ විස්තර දැක්වේ. මේ අනුව ඇස දුටු සාක්ෂි වෛද්‍ය සාක්ෂි මගින් සනාථ වේ

On the perusal of the judgment of the learned Trial Judge, it is apparent that adequate consideration has been given to the contradictions and omissions highlighted by the defence, and the finding was rightly made that they do not go to the root of the evidence of PW 3. Although PW 3 did not make a spontaneous statement to the police, there is no reason to reject her testimony. An analysis of her evidence leads to the conclusion that she has not fabricated the story, as her version is corroborated by the medical evidence, which is independent and reliable.

Also, I note that the learned High Court Judge has correctly disregarded the appellant's version and has given the reasons for that. Perusal of the dock statements of the appellants it reveale a brief denial of involvement. There is no specific plea of evidence, such as *alibi*, which has been raised by any of the appellant. PW 3 has stated how these accused were involved with the murder. In the light of the cogent incrimination evidence adduced by the prosecution, there is no attempt to explain.

For the above said reasons, I hold that there was sufficient material for the learned trial judge to come to the finding that all four accused were acting in furtherance of a common murderous intention to murder Stephen Jeyawandran alias Sinnappu.

I am also mindful that the appellants did not dispute the fact that they attacked PW 3's house, and that they absconded from the police for 14 days without offering any explanation. I hold that the prosecution has proved the case beyond

reasonable doubt, the simultaneous participation of all four accused. The learned High Court Judge has correctly identified the role of each accused separately and concluded that they all shared a common intention to commit the offence.

Considering these factors, I am of the view that none of the grounds of appeal presented by the appellant's counsel warrant interference with the findings of the Learned High Court Judge. The judgment dated 7 May 2019 is upheld, and the conviction, along with the sentence, remains in effect.

The appeal is dismissed.

JUDGE OF THE COURT OF APPEAL

Amal Ranaraja, J.
I AGREE

JUDGE OF THE COURT OF APPEAL